citing *Freeland* v. *Hastings*, 10 Allen, 570, 579; *Rawson* v. *Spencer*, 113 Massachusetts, 40, 45; *Stone* v. *Charlestown*, 114 Massachusetts, 214, 223; *Coolidge* v. *Brookline*, 114 Massachusetts, 592; *Hill* v. *Boston*, 122 Massachusetts, 344, 349, 355; *Laramie* v. *Albany*, 92 U. S. 307; *Tippecanoe Commissioners* v. *Lucas*, 93 U. S. 108, 114; *New Orleans* v. *Clark*, 95 U. S. 644, 654; *Meriwether* v. *Garrett*, 102 U. S. 472; *Prince* v. *Crocker*, 166 Massachusetts, 347; *Browne* v. *Turner*, 176 Massachusetts, 9.

The burden of proof is strongly upon the party asserting such private ownership by a municipality. *Proprietors of Mt. Hope Cemetery* v. *Boston*, 158 Massachusetts, 509, as cited and distinguished in *Browne* v. *Turner*, 176 Massachusetts, 9, 13.

Whatever may have been the state of the law at the time the extensions of location involved in these suits were granted, the legislature, by enacting c. 578 of the acts of 1898, relieved defendant from obligation to keep in repair any part of the surface material of the streets included in any of said extended locations.

Assuming the statute abrogated the obligations (if they were such) set out in the five cases, the legislature of Massachusetts did not, in so abrogating the obligations, violate any provisions of the Constitution of the United States. If such obligations were property such property was not private municipal property and was subject to legislative control. *East Hartford* v. *Bridge Co.*, 10 How. 511; *Laramie County* v. *Albany County*, 92 U. S. 307; *Meriwether* v. *Garrett*, 102 U. S. 472; *Browne* v. *Taylor*, 176 Massachusetts, 9, and cases cited on p. 14; *People* v. *Kerr*, 27 N. Y. 188; *Clinton* v. *Cedar Rapids R. Co.*, 24 Iowa, 455.

Mr. Justice Peckham, after making the foregoing statement of facts, delivered the opinion of the court.

The defendant in error makes no objection to the form in